

ALITO, J., dissenting

Does the majority mean to suggest that all such precedents are fair game?

The majority's primary reason for overruling *Apodaca* is the supposedly poor "quality" of Justice White's plurality opinion and Justice Powell's separate opinion. *Ante*, at 105–106. The majority indicts Justice White's opinion on five grounds: (1) it "spent almost no time grappling with the historical meaning of the Sixth Amendment's jury trial right,"¹⁹ (2) it did not give due weight to the "Court's long-repeated statements that [the right] demands unanimity,"²⁰ (3) it did not take into account "the racist origins of [the] Louisian[a] and Orego[n] laws,"²¹ (4) it looked to the function of the jury-trial right,²² and (5) it engaged in "a breezy cost-benefit analysis" that, in any event, did not properly weigh the costs and benefits.²³ All these charges are overblown.

First, it is quite unfair to criticize Justice White for not engaging in a detailed discussion of the original meaning of the Sixth Amendment jury-trial right since he had already done that just two years before in his opinion for the Court in *Williams v. Florida*, 399 U. S. 78, 92–100 (1970). In *Williams*, after examining that history, he concluded that the Sixth Amendment did not incorporate every feature of the common-law right (a conclusion that the majority, by the way, does not dispute). And in *Apodaca*, he built on the analysis in *Williams*. Accordingly, there was no need to repeat what had been said before.

Second, it is similarly unfair to criticize Justice White for not discussing the prior decisions that commented on jury

Richmond v. J. A. Croson Co., 488 U. S. 469 (1989); *Bakke*, 438 U. S. 265; *Gregg v. Georgia*, 428 U. S. 153 (1976) (joint opinion of Stewart, Powell, and Stevens, JJ.).

¹⁹ *Ante*, at 106.

²⁰ *Ibid.*

²¹ *Ibid.*

²² *Ibid.*

²³ *Ante*, at 99.